

## 26STCV14974 26STCV14974

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-08-26

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Case Number: 26STCV14974 Hearing Date: August 26, 2026 Dept: 406

JOHN BROWN,

Plaintiff,

v.

FOOD 4 LESS OF

CALIFORNIA, INC., et al.,

Defendants.

Case No.: 26STCV14974

Hearing Date: August 26, 2026

[TENTATIVE]

order RE:

defendants' demurrer and motion to  
strike

### BACKGROUND

On May 11, 2026, Plaintiff John

Brown filed this action against Food 4 Less of California, Inc., Alpha Beta Company, and John Doe. The complaint asserts claims for (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligence, and (5) negligent hiring. The complaint stems from injuries that Plaintiff

sustained after an alleged assault and battery by a security guard hired by Defendants.

On July 6, 2026, Defendants Food 4

Less and Alpha Beta Company filed the instant demurrer and motion to strike.

Plaintiff filed an opposition on August 13, 2026. Defendants filed a reply on August 19, 2026.

## LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) 'in ordinary and concise language,' and the test for adequacy is not absolute but 'whether the pleading as a whole apprises the adversary of the factual basis of the claim.'" (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of that pleading. (Code Civ. Proc., § 435, subd. (b).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) any irrelevant, false, or improper matter inserted in any pleading and (2) all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

## MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the

motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendants have satisfied the meet and confer requirement. (See Gorokhovsky Decl.)

## DISCUSSION

### I.

#### Demurrer

##### a. Respondeat Superior

An employer is vicariously liable for the torts of its employees committed within the scope of the employment. (*Perez v. Van Groningen & Sons, Inc.* (1986) 41 Cal.3d 962, 967.) Whether a tort falls within the scope of employment depends on whether the tortious conduct is a foreseeable consequence of the employment. (*Rodgers v. Kemper Constr. Co.* (1975) 50 Cal.App.3d 608, 618.) This means that “an employee’s conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among other costs of the employer’s business.” (*Id.* at p. 619.) In other words, “[t]he employment must be such as predictably to create the risk employees will commit intentional torts of the type for which liability is sought.” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 302.)

“If an employee substantially deviates from his duties for personal purposes, the employer is not vicariously liable for the employee’s actions.” (*Alma W. v. Oakland Unified School Dist.* (1981) 123 Cal.App.3d 133, 139.) “Thus, if the employee ‘inflicts an injury out of personal malice, not engendered by the employment’ [citation] or acts out of ‘personal malice unconnected with the employment’ [citation], or if the misconduct is not an ‘outgrowth’ of the employment [citation], the employee is not acting within the scope of employment.” (*Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1005.) Physical violence is not categorically outside the course and scope of employment. “Nonsexual assaults that were not committed to further the employer’s interests have been considered outgrowths of employment if they originated in a work-related dispute.” (*Lisa M.*, *supra*, 12 Cal.4th at p. 300.) The scope of employment is “interpreted broadly” and is ordinarily a “question of fact.” (*Farmers*,

supra, 11 Cal.4th at pp. 1004, 1019.)

Here, the complaint has pled the ultimate fact that John Doe was acting within the course and scope of his employment as Defendants' security guard when he assaulted Plaintiff. (Compl. ¶ 13.) Whether John Doe's actions arose from his employment with Defendants or from personal malice unconnected to the employment is a question of fact not resolvable on a demurrer. The demurrer demands evidentiary detail not required for pleading. In sum, the complaint sufficiently establishes Defendants' vicarious liability.

#### b. Negligent Hiring

The elements of negligence are: (1) a duty to exercise ordinary care; (2) breach of that duty; (3) causation; and (4) damages. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) "California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) "Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (Ibid.)

Here, the complaint alleges that Defendants knew or should have known that John Doe was unfit and created a risk of harm to others but nonetheless retained him and failed to adequately supervise him. (Compl. ¶¶ 53-58.) This sufficiently states a negligent hiring claim. What Defendants actually knew and how they knew are questions of fact beyond the purview of a demurrer.

#### II. Motion to Strike

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code, § 3294(a).) An employer may be liable for punitive damages if "the employer had advance knowledge of the unfitness of the employee and employed him or her with

a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct." (Id., § 3294(b).)

As

discussed above, Plaintiff has alleged that Defendants knew of John Doe's unfitness and hired him nonetheless. Whether this was done with conscious disregard is a question of fact. The complaint also alleges that Defendants ratified John Doe's acts. (Compl. ¶ 6.) Those alleged acts are sufficiently malicious and oppressive to warrant punitive damages. Whether the ratification was done by an officer, director, or managing agent is a question of fact. In sum, the complaint sufficiently pleads a basis for punitive damages.

## CONCLUSION

Defendants'

demurrer is OVERRULED. The motion to strike is DENIED.